

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH &
BEYOND INC., *Complainant*

DOCKET NO. 24-12

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC
#011982) CONSISTING OF EVERGREEN MARINE CORP.
(TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED; ITALIA
MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.;
AND EVERGREEN MARINE (SINGAPORE) PTE. LTD.,
Respondents.

Served: September 17, 2025

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge.*

THIRD AMENDED SCHEDULING ORDER

On August 18, 2025, the parties filed a Joint Status Report and Motion to Extend Deadlines seeking a two-month extension to the scheduling order. Dkt. 50. I held a status conference on August 21, 2025 to discuss the status of discovery and Respondent's motion to compel. At the conference, the parties confirmed that the technical issues that had previously delayed completion of document discovery were resolved, but that there were new technical issues impacting their ability to access and review approximately 22,000 documents produced by Yusen Logistics (Americas) Inc. pursuant to subpoena, as described in the joint status report. The parties also confirmed that they had been conducting party depositions as set forth in the joint status report, but that they had not scheduled deposition of Yusen employees given the problems reviewing the Yusen data.

Given the technical difficulties and the importance of the outstanding discovery to the proceeding (the parties state that Yusen managed all of Complainant's bookings), I find good cause to extend the schedule. The parties did state that they anticipate having one or two experts each, but did not explain the need for the expanded expert-discovery timeline in their proposed amended schedule. That part of the schedule will not be expanded. The parties are **ORDERED** to abide by the following amended schedule:

Last day to serve interrogatories, requests for admission, and RFPs

September 30, 2025

Complete depositions of fact witnesses

October 31, 2025

Disclosure of initial expert reports, if any	November 21, 2025
Disclosure of rebuttal expert reports, if any	December 12, 2025
Complete expert depositions	January 6, 2026
Close of discovery	January 6, 2026
Complainant's initial brief, proposed findings of fact, and appendix	February 6, 2026
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	March 6, 2026
Complainant's reply and responses to proposed findings of fact	March 20, 2026

SO ORDERED.

ALEX
CHINTELLA

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ALEX CHINTELLA
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Alex M. Chintella
Administrative Law Judge